

8. S-PR-0014091 In Re the Conservatorship of Webb-Smith, Jessica

Appearance is required for hearing on amended petition for appointment of joint conservators of the person.

Missing citation for amended petition. Because amended petition was filed, full re-noticing is now required. C.R.C. 7.53. Missing 15 days' personal service of citation with copy of the amended petition to proposed conservatee.

Missing notice for amended petition. Because amended petition was filed, full re-noticing is now required. C.R.C. 7.53. Missing 15 days' service of notice of hearing with copy of the amended petition to all 2d-degree relatives of proposed conservatee. Missing 30 day's service of notice of hearing with copy of the amended petition to Alta California Regional Center.

Missing relationship(s) of proposed conservators to proposed conservatee. ¶ 3c(4).

Missing allegations at ¶ 4c (tribal affiliation).

As required by Prob.C. § 1800.3(d), the court must deem the petition to be one seeking limited conservatorship of the person. Petitioner should designate which powers / orders under Prob.C. § 2351.5(b) are requested. The court investigator, counsel for respondent, and the Regional Center's response to petitioner's designation of limited powers / orders is needed. Prob.C. § 1827.5(a) report from Alta California Regional Center is required.

Missing Alta California Regional Center report.

9. S-PR-0014186 In Re the Conservatorship of Wheatley, Yvonne Marie

Appearance is required for continued hearing on petition for appointment of conservator of the person and estate.

Missing 15 days' personal service of citation to proposed conservatee.

Missing medical evidence showing proposed conservatee cannot attend the hearing due to medical inability (GC-325).

Missing statement concerning proposed professional fiduciary fees. Prob.C. § 1821(c)(1).

Missing any requested Prob.C. §§ 2590-2591 power(s) and good cause showing for each requested power.

Revised bond request is needed: real property is not included in conservatorship bond unless authorization to sell property without court approval is granted. Such power is not requested. If such power were to be requested, CRCX 7.207 bond amount would be \$509,300.00 based on the allegations of the petition. Petitioner alleges no personal property or income of any kind, which is unlikely.

Note: MND powers attachment requests power relating to MND medications only (secure-perimeter placement powers not requested).

Missing appointment of counsel for respondent. Missing appearance / response by court-appointed counsel.

Missing investigation report.

Clarification is needed: petition refers to a grandchild (Attachment 1l), but no grandchild is identified in the petition.

Any powers or authority related to changing estate planning including revoking a TOD deed likely requires a substitute judgment or other petition.

Proposed conservator response needed: proposed conservator appears to be a professional fiduciary in Orange County. Proposed conservator should show how she will be able to manage proposed conservatee's care needs from said location.

Clarification is needed: Attachment 1l refers to a financial account owned by "Proposed Conservator and (Proposed Conservator) her granddaughter," without explanation.

10. S-PR-0014219 In Re the Conservatorship of Errek, Penelope Lynn

Appearance is required for hearing on 2d amended petition for appointment of conservator of the person and estate.

Missing 15 days' personal service of citation with copy of 2d amended petition to proposed conservatee. C.R.C. 7.53.

Missing Attachment 14 to confidential conservator screening form filed August 21.

Missing any legal points and authorities to support waiver of bond. As has been previously noted, petitioner's status as temporary conservator, successor trustee, and agent are not legal grounds for waiver of bond. The Probate Code does not provide for waiver of bond by a nominator of a conservator.

Clarification is needed: petitioner requests §§ 2590–2591 powers to sell real property without sufficient information. If the request is to authorize sale of real property without court authorization under § 2591(c), the full value of real property should be bonded. Clarification is needed as to the nature and extent of the requested power.

Medical consent powers are not requested at ¶ 1g, although grounds are alleged at ¶ 9. The requests for medical consent powers under Prob.C. §§ 2354–2355 are not well taken. The former, § 2354, governs where conservatee is not adjudicated to lack capacity for medical decisions, and so appears to have no application. Prob.C. § 2355 sets forth those powers automatically granted to a conservator of the person where the conservatee is adjudicated to lack medical decisional authority. As filed, the 2d amended petition fails to request such powers where designated (¶ 1g), as previously noted.

Missing medical capacity declaration.

Missing response by court-appointed counsel for proposed conservatee.